

U.O.Note No.1041/SC.F/88-4, Genl.Admn. (SC.F) Dept., dt.16.08.1989 regarding entrustment of departmental inquiries to Commissionerate of Inquiries - framing of charges.

Subject Heading : Commissionerate of Inquiries - framing of charges

Ref : 1.Memo.No.490/SC.E/87-1, G.A.(SC.E) Dept., dt.13.03.87.

2. From the former Commissioner for Departmental Inquiries, D.O.Lr.No.165/CDI /87-11, dt.10.02.89.

It has been brought to the notice of the Government that due care and caution is not being taken by the Departments while framing charges against delinquent officers. As a charge Memo is the essence of an allegation setting out the nature of the accusation in general terms, such as negligence in the performance of official duties, breach of conduct rules, misconduct etc., it is necessary to frame the articles of charge with great care. All Departments of Secretariat are requested to keep the following important aspects in view while framing charges against the delinquent officers hereafter:-

- a) Each charge should be expressed in clear and precise terms and should not be vague.
- b) A separate charge should be framed in respect of each separate transaction / event or a series of related transactions/events amounting to misconduct/misbehaviour.
- c) If the transaction/event amounts to more than one type of misconduct then all the misconducts should be mentioned.
- d) If a transaction / event shows that the Government Servant must have been guilty of one or the other of misconducts depending in one or the other set of circumstances, then the charge can be in the alternative.
- e) Multiplication or splitting up of charges on the basis of the same allegation should be avoided.
- f) The wording of the charge should not appear to be an expression of opinion as to the guilt of the delinquent official.
- g) A charge should not relate to a matter which had already been the subject matter of an inquiry and decision, unless it is based on benefit of doubt or on technical consideration.
- h) The charge should not refer to the preliminary investigation.
- i) The articles of charge should first give plain facts and then mention the nature of misconduct / misbehaviour.
- j) The statement of imputations should give full and precise recitation of the specific and relevant acts of commission or omission on the part of the Government Servant in support of each charge including any admission or confession made by the Government Servant and any other circumstances which it is proposed to take into consideration. In particular, in cases of misconduct / misbehaviour, it should mention the conduct / behaviour expected or the rule violated. It should be precise and factual. While drafting the statement of imputations it would not be proper to mention the defence and enter into a discussion of

the merits of the case. Wording of the imputations should be clear enough to justify the imputations inspite of the likely version of the delinquent.

- k) The list of witnesses should contain the names of only those witnesses who will be able to give positive evidence to substantiate the allegations.
- l) The list of documents should mention documents containing evidence in support of the allegations which are proposed to be provided during the inquiry on behalf of the disciplinary authority.

2. All material particulars given in the allegations, such as dates, names, figures, totals of amounts etc., should be carefully checked with reference to original documents and records.